



ADVOCATE

ADV. DHIRAJ SURANA

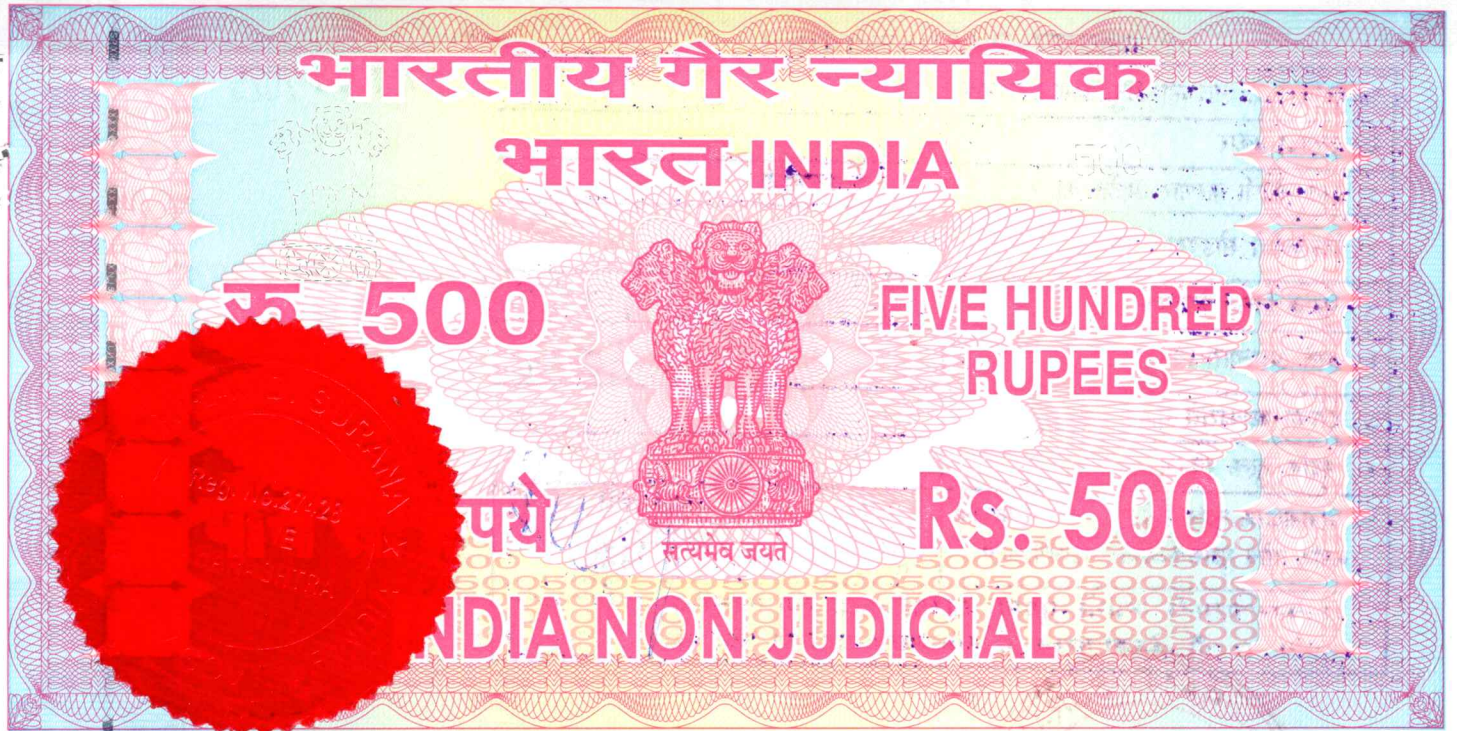
Advocate High Court
(Notary Govt. Of India)

Off. Address:- A-235, First Floor, Vashi Plaza, Plot
No.80/81, Sector-17, Vashi, Navi Mumbai.

Cell No. 8779011041.

E-mail:-advdhirajsurana@gmail.com



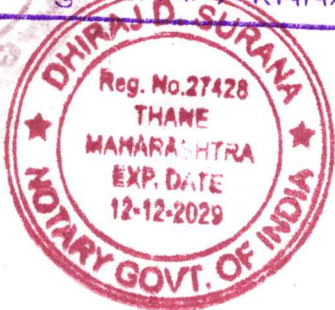


महाराष्ट्र MAHARASHTRA

2025

EE 062880

जिल्हा कोषागार कार्यालय ठाण
10 NOV 2025
मुद्राक प्रमुख लिपीक / लिपीक



NOTED & REGISTERED

Sr. No. 493 Page No. 42

Date: 12/11/2025

SERVICE AGREEMENT

JAI JAWAN CO-OPERATIVE HOUSING SOCIETY LTD. having its registered office at Plot No. 01, Sector 17, Vashi, Navi Mumbai - 400703.

AND

Arch. SAGAR LAXMAN PATEL (M/s. PATEL ARCHITECTS AND ASSOCIATES), having its office at Office No. 102, Skylark, Plot No.63, Sector-11, CBD Belapur, Navi Mumbai-400614.

This Service Agreement (the "Agreement") is made on 10th November 2025.

BETWEEN:

Anand Singh

BC

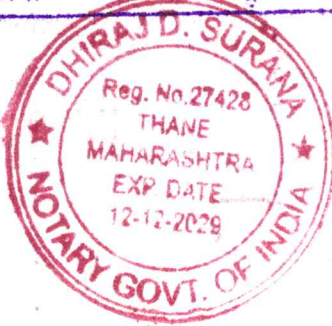


जोडपत्र-२/Annexure-II

१. मुद्रांक विना नोंदवही अनु. क्रमांक/दिनांक	८१५०९
२. दस्तावेज प्रकार	
३. दस्त नोंदणी करणार आहेत का ?	होय/नोही
४. मिळकतीचे सोडवयात वर्ग	
५. मुद्रांक विकत घेणाऱ्याचे नाव	Sagar & Patel
६. हस्ते असल्यास त्याचे नाव	Santosh
७. दुसऱ्या बक्षकाराचे नाव	
८. मुद्रांक शुल्क रकम	
९. परवानाधारक मुद्रांक विक्रेत्याची नाव व परवाना क्रमांक, तसेच मुद्रांक विक्रेत्याची ठिकाण/पत्ता	विक्रेता: श्री. धीराज डी. सुराना परवाना क्र. २७४२८ ठाणे, महाराष्ट्र ४०००५५
१०. या कारणासाठी ज्यांनी मुद्रांक खरेदी केला त्यांनी त्याच कारणासाठी मुद्रांक ५ वी वेळापत्रासुन ६ महिन्यात वापरणे बंधनकारक आहे.	

12 NOV 2025

12 NOV 2025



JAI JAWAN CO-OPERATIVE HOUSING SOCIETY LTD.

having its registered office at

Plot No. 01, Sector 17, Vashi, Navi Mumbai - 400703, (hereinafter referred to as the "Client"), represented by its **Chairman, Mr. Anandaraj Periaswamy, Secretary, Mr. Bhushan Ravindra Deshpande, Treasurer, Mr. Manohar Narayan Kadam** (collectively referred to as the "Client", which expression shall, unless the context requires otherwise, include their successors in office, administrators, and permitted assigns),

AND

Arch. SAGAR PATEL (M/s. PATEL ARCHITECTS AND ASSOCIATES)

having its office at Office No.102, Skylark, Plot No. 63, Sector 11, CBD Belapur, Navi Mumbai - 400614, (hereinafter referred to as the "Consultant" or "PMC", which expression shall, unless the context requires otherwise, include their successors, associates, administrators, and permitted assigns).

WHERE:

1. The Client intends to carry out a redevelopment project for their society at **Plot No. 01, Sector 17, Vashi, Navi Mumbai - 400703** (hereinafter referred to as the "Project").
2. The Client has requested quotations for Project Management Consultant (PMC) services for the redevelopment of their society, as described in the General Terms and Conditions attached hereto (hereinafter referred to as the "Consultant").
3. The Consultant specializes in providing such services and possesses the necessary qualifications, expertise, and resources to perform the required services.
4. The Client desires to engage the Consultant to provide the services outlined in this Agreement, and the Consultant has agreed to do so under the terms and conditions set forth herein.
5. This Agreement is executed based on a resolution passed unanimously at the Special General Body Meeting (SGBM) of **Jai Jawan Co-op. Housing Society Ltd.**, held on **12th October 2025**.
6. The Consultant (PMC) has represented to the Client that it possesses the requisite expertise, professional skills, technical resources, and personnel to act as the Project Management Consultant for the redevelopment project. The Client has relied upon these representations in appointing the Consultant (PMC) to provide the services as outlined in this Agreement.

Anandaraj P

Bhushan R

Manohar N

Sagar Patel





DEFINITIONS AND INTERPRETATIONS:

1. **"Applicable Law"**: Refers to all statutes, acts, laws, regulations, rules, notifications, guidelines, policies, or judicial decisions applicable within the jurisdiction of India or any state, as well as any governmental or regulatory authority having jurisdiction.
2. **"Approval"**: Refers to all necessary sanctions, permissions, consents, validations, confirmations, licenses, or authorizations required by any government body.
3. **"Government Body"**: Refers to any government authority, agency, department, commission, board, tribunal, or court with jurisdiction in India or any subdivision thereof, including any municipality or district authority.
4. **"GST"**: Refers to the Goods and Services Tax under the Goods and Services Tax Act of India, 2017.
5. **"Service"**: The range of services provided by the Consultant (PMC), which includes but is not limited to:
 - a. Conducting feasibility studies and ensuring quality control of materials used in construction.
 - b. Verifying that the project design and clauses are completed by the developer as per the agreement with the society.
 - c. Supervising the construction process, ensuring it is on schedule and meets the required quality standards.
 - d. Providing weekly progress reports and bar chart status updates.
 - e. Arranging intermediate meetings between the architect, structural engineer, society committee members, and PMC engineers.
 - f. Issuing statements for any deviations or improvements as needed.
 - g. Reporting on the progress of the project, including any changes in plans or approaches.
 - h. Reviewing legal documents such as the Development Agreement, Service Agreements, Conveyance Agreements, and contracts with professionals to ensure they align with the interests of the society.
 - i. Ensuring compliance with relevant laws, including the Society Act, Income Tax, and GST.
 - j. Verifying the quality of materials used by the selected developer.
6. **"Term"**: Refers to the duration during which the Consultant (PMC) will provide the services as specified in this Agreement, in accordance with the "Term and Termination" clauses herein.
7. **"Committee" Definition:**

For the purpose of this Agreement, the term "Committee" shall collectively refer to the Redevelopment Committee and the Managing Committee of Jai Jawan Co-operative Housing Society Ltd., whenever both committees are to be addressed jointly.

Wherever specific reference to either committee is required, the same shall





be expressly mentioned as "Redevelopment Committee" or "Managing Committee," as the case may be.

8. **Interpretation:**

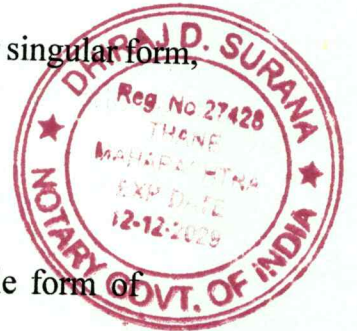
- a. The headings used in this Agreement are for convenience only and shall not affect its construction or interpretation.
- b. Words in the singular or plural form include the plural or singular form, as appropriate.
- c. Words denoting any gender shall include all genders.
- d. The term "written" or "in writing" includes any visible form of reproduction.
- e. The terms "hereof," "herein," "hereto," and similar expressions refer to this entire Agreement, unless otherwise specified.
- f. The term "includes" or "including" means "without limitation."
- g. The term "person" includes any individual, company, partnership, joint venture, trust, government entity, or any other legal or juristic entity.
- h. Any reference to "Clauses" or any agreement or document herein shall be interpreted to include references to amendments, modifications, supplements, or updates made to such documents from time to time.
- i. **Deliverables** – specify reports, drawings, certificates, or other documents the PMC must produce.
- j. **Developer** – define clearly as "the entity appointed by the Society to undertake redevelopment work."
- k. **Commencement Date** – define explicitly here, not only in the Termination clause.
- l. **Completion Date** – to align milestone-based payments and termination triggers.

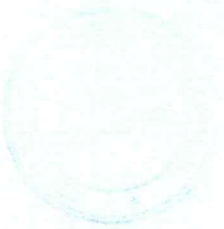
SECTION 1: PROJECT INFORMATION

1. **INTRODUCTION**

Background of **Jai Jawan Co-Operative Housing Society Ltd.**,
WHEREAS:

- a. **Jai Jawan Co-Operative Housing Society Ltd.**, bearing Registration No. TNA/HSG/1077/81, was registered on 11th August 1981 under the Maharashtra Co-operative Societies Act. The society's registered office is located at Plot No. 01, Sector 17, Vashi, Navi Mumbai 400703.





b. The **Commencement Certificate** for construction was granted under reference **CC Letter No. BP/Vashi/Sect-17/1/588**, dated **23rd September 1981**.

c. The **Occupancy Certificate** was issued under reference **OC Letter No. BP/V/17/1/200**, dated **16th December 1986**.



2. EXISTING SITE DETAILS

The table below summarizes the current status of the buildings within the society premises:



Sr. No.	Location	No. of Existing Buildings	No. of Floors	No. of Tenants (Commercial: Residential)
1.	Plot No. 01, Sector 17, Vashi, Navi Mumbai – 400703	01	G+4	45: 72

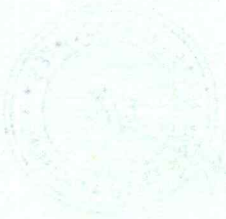
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SECTION 2: SCOPE OF SERVICES

As the appointed **Project Management Consultant (PMC)** and **Architect**, your responsibilities shall be carried out across the following phases:

PHASE I: PRE-TENDERING STAGE

1. Feasibility Report

Prepare a feasibility report aligned with current government policies, particularly regarding the utilization of TDR (Transfer of Development Rights).

2. Recommendations to Society

Recommend a list of proposed amenities, additional area entitlements, corpus fund contributions, etc., and present a detailed report to the society prior to initiating the tendering process.

3. Preliminary Design

Develop tentative floor plans to illustrate the project's spatial and functional layout.

4. Tender Documentation

Draft tender documents; review and discuss them with the Society Committee and obtain final approval to proceed with floating the tender.

5. Invitation of Tenders

Invite both technical and financial bids from qualified and approved builders/developers. Review conceptual designs, prepare a comparative analysis, and submit findings to the Society Committee.

6. Shortlisting and Final Selection

Conduct joint meetings with shortlisted developers, alongside society representatives, to assist in selecting the most suitable developer.

PHASE II: PRE-CONSTRUCTION STAGE

1. Letter of Intent (LOI)

Draft the LOI reflecting the terms finalized with the selected developer.

2. Soil Testing

Coordinate with the developer for soil investigation and ensure submission of the soil test report.

3. Member Coordination

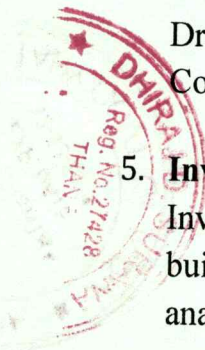
Document individual member requirements and collaborate with the design architect for integration into the final plans.

4. Plan Approvals

Review and approve developer-submitted plans strictly in the best interest of the society.

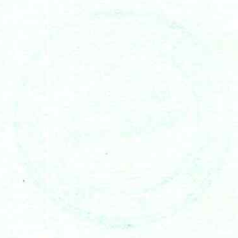
5. Legal and Tax Advisory Support

Assist the society in appointing competent solicitors/legal consultants and



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tax advisors.

6. Project Scheduling

Prepare project bar charts to ensure timely completion and milestones tracking.

7. Design Coordination

- a. Ensure that all detailed electrical and plumbing layouts are prepared by the developer's architect.
- b. Confirm preparation of working drawings and structural drawings by the developer's design team.

8. Technical Verifications

- a. Oversee soil investigation reports to ensure appropriate construction techniques and materials are proposed.
- b. Monitor submission and approval of proposed layout, building files, IOD (Intimation of Disapproval), and CC (Commencement Certificate).

PHASE III: CONSTRUCTION STAGE

1. Project Coordination

- a. Provide complete technical and financial coordination with the society, the developer, and all involved engineering disciplines.
- b. Maintain overall project coordination and establish clear project communication protocols.

2. Project Programming & Reporting

- a. Schedule and monitor all project activities.
- b. Update bar charts regularly.
- c. Submit weekly progress reports to the society with photographic evidence, outlining construction status and issues.

3. Digital and Photographic Reporting:

The Consultant (PMC) shall maintain a detailed digital record of the project's progress, including photographic documentation of all key construction stages such as excavation, plinth, RCC framework, finishing works, and services installation. A representative from the Society can be present on-site for each slab casting upon prior notification.

The Consultant shall:

- a. Submit weekly progress reports accompanied by photographic evidence (minimum 10 photographs per week) showing site status, work quality, and key activities completed.
- b. Maintain a digital archive of all such reports, photographs, and bar chart updates in a shared, secure online folder accessible to the Society's Committee.





- c. Ensure all photographs bear date, time, and work description captions for traceability.
- d. Provide monthly compiled progress reports in PDF format for Society records and submission to any authority if required.
- e. Failure to provide the above documentation regularly may be treated as non-performance under this Agreement.

4. Change Management

Issue formal change notices for any modifications affecting scope, cost, or timelines.

5. Municipal Coordination

Liaise with all involved parties to ensure smooth approval and follow-up on municipal drawings.

6. Progress Monitoring

Continuously track and report progress against the agreed construction schedule.

7. **Digital Documentation:** All reports, site photos, and bar charts shall be digitally maintained and submitted via email and a shared online folder accessible to the Committee.

8. **Fortnightly Meetings:** PMC shall convene fortnightly review meetings with the Committee, and prepare signed minutes with action points.

9. **Contractor Performance Verification:** PMC shall periodically review the developer's adherence to safety standards, site labour welfare, and insurance compliance.

10. **Cost Audit:** PMC shall verify all cost statements, variation orders, and escalation claims submitted by the Developer before approval by the Society.

11. **Environmental & Safety Compliance:** PMC shall ensure compliance with environmental clearances, waste management, and fire safety norms.

The above is further explained in details as under:

MATERIAL MANAGEMENT

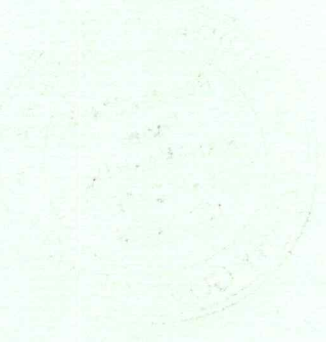
1. Ensure rigorous supervision of construction activities, strictly adhering to approved tenders/quotations.
2. Implement the following measures:

- a. Quality control and adherence to specifications.
- b. Periodic testing of construction materials before and during use.
- c. Conduct laboratory testing of both raw materials and finished



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- construction outputs.
- d. Assess required material quantities, verify procurement timelines and quality compliance.
- e. Monitor and verify the developer's stock register and on-site stock levels in alignment with the construction bar chart.

SITE SUPERVISION & QUALITY CONTROL

1. Provide full-time engineering supervision at the site.
2. Conduct site visits:
 - a. Once a Week by the Consultant/Principal Architect.
 - b. Weekly visits by project engineers.
3. Submit corrective supervision reports to the society.
4. Issue instructions on construction methods and material usage to ensure quality.
5. Issue written rectification notices for any defective works and notify both the developer and the society.
6. Provide quarterly quality assurance reports and material test results to the society.



CONSTRUCTION PROGRESS CONTROL

1. Fortnight administration and oversight of the construction contract.
2. Strict implementation of the construction bar chart, with updates in case of delays to maintain target timelines.
3. Conduct regular meetings with contractors and Committee
 - a. Identify on-ground issues.
 - b. Propose alternative solutions in the best interest of the society.
4. To give weekly status of ongoing work.



COORDINATION WITH OTHER AGENCIES

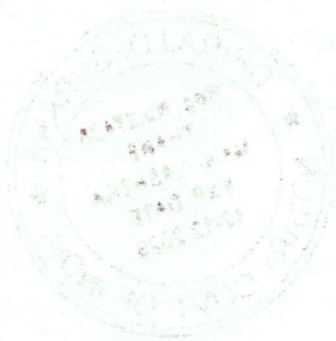
Ensure effective coordination with all stakeholders and technical experts, including but not limited to:

- a. Developer/Builder
- b. Solicitors and Legal Advisors
- c. Contractors and Subcontractors
- d. Piling and Geotechnical Consultants



Anand Singh

W. K. Kulkarni



- e. RCC Consultants
- f. Electrical and Plumbing Consultants
- g. Lift Contractors, Swimming Pool Specialists, Landscaping Experts, and any other specialist agencies involved in the project.

COMPLETION & HANDOVER

1. Verify all Completion Certificates obtained by the developer from CIDCO/NMMC or other competent authorities.
2. Review documentation and clearances related to:
 - a. Water supply
 - b. Fire safety
 - c. Environmental compliance
 - d. Drainage/sewage systems
3. Verify the as-built drawings submitted by the developer in line with the final Occupancy Certificate.
4. Prepare and submit a final Completion Report to the society upon project closure.



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SECTION 3: TERMS AND CONDITIONS



1. PROFESSIONAL FEES

- a. In consideration for the services provided as the Project Management Consultant (PMC) for the redevelopment project, the Consultant shall be entitled to professional fees amounting to 1.00% of the Total Construction Cost, plus applicable taxes (currently GST at 18%), payable on a pro-rata basis.
- b. The Consultant shall raise invoices as per the Fee Schedule (attached separately). The Client shall make payment within 30 (thirty) days of receiving a valid invoice. In case of delayed payment, interest at 1% per month on the unpaid amount shall be levied from the due date until the actual date of payment.
- c. In the event of non-payment by the Client, the Consultant reserves the right to withhold further services until outstanding dues are cleared.
- d. If the Consultant is required to provide services beyond the scope specified in this Agreement, the parties shall mutually agree on the terms, including additional fees and expenses.
- e. All documents required from any authority concerning the Society shall be arranged and obtained by the Project Management Consultant (PMC). The PMC shall initially bear all official and unofficial charges related to such procurements. These expenses shall be reimbursed by the Developer after its appointment.
The PMC shall provide all necessary liaisoning services for obtaining approvals and documents up to the 79A order at no additional cost to the Society. The PMC shall also submit to the Society all challans, receipts, and relevant records for payments made toward these charges for transparency and record purposes.
All payments made by the Society to the PMC up to Stage-03 shall, after the Developer's appointment, be reimbursed by the Developer directly to the PMC. Upon receipt of such reimbursement, the PMC shall refund to the Society all amounts earlier paid by it.
For subsequent stages, the PMC shall raise invoices directly to the Developer. However, the Society shall issue a certification confirming completion of the PMC's scope of work up to the relevant stage solely to facilitate payment, without incurring any further financial obligation.
- f. All payments by the Client shall be subject to applicable tax deductions.



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- g. Where permitted by the Development Agreement, the Client may pass on the payment obligation for services to the appointed Developer.

2. Performance Security / Retention Clause

10% of the total consultancy fee (corresponding to Payment Schedule Stage 12 + 13) shall be retained as a performance security, to be released only after successful completion, verification, and handover of the project with Occupancy Certificate.

3. REPRESENTATIONS AND WARRANTIES

a. Each Party represents and warrants that:

- It has full legal authority to enter into and perform obligations under this Agreement.
- This Agreement constitutes a valid, legal, and binding obligation, enforceable in accordance with its terms.
- Execution and performance of this Agreement will not violate its constitutional documents or any contractual or legal obligations.

b. The Consultant further represents and warrants that:

- It shall render services in compliance with the terms of this Agreement.
- It shall act in good faith and with reasonable skill and diligence.
- It shall comply with all applicable laws and regulations.
- It possesses all required licenses, approvals, and permissions necessary for providing the services.

Except as expressly provided, the Consultant disclaims all warranties, express or implied, including those of merchantability and fitness for a particular purpose.

4. INSURANCE

The Consultant shall maintain professional indemnity insurance / bond of ₹25 lakhs during the project period, covering negligence, design errors, or professional misconduct

Anand Singh

W. Chandra

P. A. Patil

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5. OBLIGATIONS OF CLIENT

The Client agrees to:

- a. Provide full cooperation and support necessary for the Consultant to perform its services effectively.
- b. Furnish all documents, records, and information reasonably required by the Consultant.
- c. Install a project hoarding at the society premises acknowledging the Consultant's appointment and role.
- d. PMC should also provide all required License and documents to the Clients



6. CONFLICT OF INTEREST CLAUSE

The Consultant shall not, directly or indirectly, have any financial, professional, or personal interest in the developer or any contractor associated with the project. Any such conflict must be disclosed immediately.

6. TERMS OF TERMINATION

- a. This Agreement shall commence on 12th November 2025 ("Commencement Date") and shall remain in force until possession of redeveloped units is handed over to the society members. if the project is still ongoing or needs continued PMC involvement, the agreement will **automatically extend for another 3 years** (and will keep doing so every 3 years), unless terminated by either party with 45 (Forty Five) days' written notice before the end of any term.
- b. This Agreement may be terminated:
 - By either Party, with prior written notice.
 - By the Client, in case the Consultant fails to deliver the agreed deliverables to the Society for a continuous period of forty-five (45) days,
 - The Client shall have the right to issue a fourteen (14) days' written notice to the Consultant, seeking clarification and justification for such non-performance.



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If the Consultant fails to provide a valid and satisfactory clarification within the said fourteen (14) days' notice period, the Client shall have the right to terminate this Agreement.

- By the Consultant, in case of a material breach by the Client, with 30 days' prior written notice.
- c. Provisions regarding Dispute Resolution, Indemnity, Limitation of Liability, and any other clauses intended to survive shall continue beyond termination.
- d. Immediate Termination Option
The Client may terminate the Agreement immediately in case of fraud, gross negligence, conflict of interest, or misconduct by the Consultant.
- e. Obligation after Termination:
Upon termination, the Consultant shall hand over all project data, reports, drawings, and correspondence within 15 days.
- f. Audit and Access to Records
The Client or its appointed auditor shall have the right to inspect and audit the Consultant's project records, time logs, and reports related to this engagement.



OWNERSHIP OF INTELLECTUAL PROERTY

- a. This Agreement does not transfer any intellectual property rights unless explicitly stated.
- b. All confidential and proprietary materials, concepts, and methodologies owned by either party prior to or independently of this Agreement shall remain the sole property of that party.
- c. Any work product, including but not limited to reports, manuals, designs, data, and analyses, created by the Consultant specifically for the Client under this Agreement shall become the intellectual property of the Client.



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8. Reporting and Escalation Matrix

Any issue affecting project progress must be immediately escalated in writing to the Committee and discussed in the next fortnightly meeting.



9. FORCE MAJEURE

Neither party shall be liable for failure to perform its obligations under this Agreement due to Force Majeure events, including but not limited to natural disasters, war, terrorism, or any unforeseeable event beyond their control.

- a. The affected party shall notify the other party immediately in writing, detailing the event.
- b. If the Force Majeure continues for more than 30 days, parties shall mutually decide the way forward.
- c. If the situation persists beyond 90 days, either party may terminate the Agreement by giving written notice.

10. INDEMNITY

The Consultant agrees to indemnify and hold harmless the Client from any damages, costs, or liabilities arising from:

- a. Any breach of this Agreement by the Consultant.
- b. Any misrepresentation or breach of warranties by the Consultant.

11. TAXES

The Client shall be responsible for all applicable taxes, including but not limited to GST, as per prevailing laws.

12. Compliance Clause

The Consultant shall ensure all works, reports, and advice comply with guidelines issued by the Maharashtra Co-operative Societies Act, 1960; MAHARERA, CIDCO and NMMC regulations.



13. NON-COMPETE AND CONFIDENTIALITY

Neither party shall use the other's confidential information or proprietary designs, ideas, or concepts to gain a commercial advantage, nor shall they

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disclose such information without written consent.

14. DATA CONFIDENTIALITY AND DATA RETENTION

The Consultant shall securely maintain all project-related data for at least 5 years post completion and ensure confidentiality of member details.

15. SEVERABILITY

If any provision of this Agreement is deemed invalid or unenforceable, the remaining provisions shall remain in full force. The invalid clause shall be replaced with a valid clause that closely reflects the original intent.

16. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the parties and supersedes all prior communications, negotiations, or agreements, written or oral.



17. AMENDMENTS

No amendment or modification of this Agreement shall be valid unless made in writing and signed by authorized representatives of both parties.

18. ADDITION OR MODIFICATION OF CLAUSES:

In the event that any point, clause, or term relevant to this Agreement is inadvertently omitted or subsequently found necessary for effective execution of the Project, such clause may be added, modified, or supplemented through a written document executed with the mutual consent of both Parties.

Such addition or modification shall be treated as an Annexure or Attachment to this Agreement and shall carry the same legal validity and enforceability as if originally incorporated herein. No such amendment shall be binding unless it is duly signed and sealed by the authorized representatives of both the Client and the Consultant (PMC).



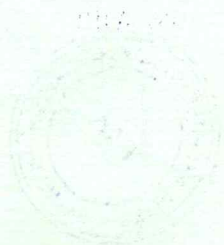
19. DISPUTE RESOLUTION

- a. Disputes shall be resolved amicably, where possible or by appointing Arbitrator as per Arbitrator act 1996.
- b. Failing resolution, courts in Navi Mumbai shall have exclusive jurisdiction.

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c. Disputes shall first be referred to a sole arbitrator jointly appointed by both parties within 15 days of written notice. Arbitration shall be conducted in Navi Mumbai under the Arbitration and Conciliation Act, 1996.

20. The prevailing party in legal proceedings shall be entitled to recover legal fees and costs. of INDEPENDENT PARTIES
The relationship between the Parties is that of independent contractors. Nothing herein creates a partnership, joint venture, or principal-agent relationship.



21. **EXCLUSIVITY**

This Agreement does not prevent either party from engaging in similar arrangements or discussions with other entities.

22. **NOTICES**

All notices shall be in writing and addressed to:

For Client:

Jai Jawan Co-Operative Housing Society Ltd., having its registered office at **Plot No. 01, Sector 17, Vashi, Navi Mumbai - 400703**, through its Chairman, Mr. Anandaraj Periaswamy, Secretary, Mr. Bhushan Ravindra Deshpande, and Treasurer, Mr. Manohar Narayan Kadam

For Consultant:

Arch. Sagar Laxman Patel, M/s. Patel Architects and Associates having its office at **Office No. 102, Skylark, Plot No. 63, Sector-11, CBD Belapur, Navi Mumbai – 400614.**

Either party may update its contact details by giving 10 days' written notice to the other.



23. **LIQUIDATED DAMAGES**

In case of errors or negligence in reports by the Consultant, the Client may recover liquidated damages, quantified reasonably, up to the total Agreement Value. However, any variations resulting from changes in Government policy shall not be considered for such claims.

24. **GOVERNING LAW**

This Agreement shall be governed and interpreted in accordance with the laws of India.

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SECTION 4: PAYMENT SCHEDULE

The Professional Fees for the scope of work detailed in this Agreement shall be 1% (One Percent) of the Total Construction Cost, exclusive of applicable taxes. Goods and Services Tax (GST) shall be charged in addition, at the rate applicable at the time of invoicing.

The payment of professional fees shall be made in accordance with the following milestone-based schedule:

PARTICULARS		SCHEDULE
Professional Fees		1% of Construction Cost
Stage 01	On appointment and issuance of Authority Letter	50,000
Stage 02	On submission of Feasibility Report with schematic architectural drawings, area calculations, and amenities options	25,000
Stage 03	On preparation and submission of tender documents for appointment of builder/ Developer	25,000
Stage 04	On selection and signing of Development Agreement with the developer	10% of total fees, less the amount paid in Stages 01- 03
Stage 05	Coordination and monitoring for obtaining Commencement Certificate	10% of total fees
Stage 06	Coordination and obtaining working drawings and RCC details from appointed consultants	10% of total fees
Stage 07	On completion of plinth (including coordination, monitoring & control)	10% of total fees
Stage 08	On completion of full RCC framework (superstructure)	15% of total fees
Stage 09	On completion of sample flat with all finishes and fixtures	15% of total fees
Stage 10	On completion of brickwork and plaster	15% of total fees
Stage 11	On virtual completion of project	5% of total fees
Stage 12	On obtaining Occupancy Certificate (OC)	5% of total fees
Stage 13	On final handing over of flats/ keys to society and completion of all formalities	5% of total fees



- a. No stage payment shall be released unless deliverables for that stage are verified and approved in writing by the Committee.
- b. TDS and statutory deductions shall be applicable as per law.

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NOW, THEREFORE, THIS AGREEMENT WITNESSETH AS FOLLOWS:

This Service Agreement is divided into the following four main sections, in addition to the Definitions/Interpretations and Annexures:

- **Section 1:** Project Information
- **Section 2:** Scope of Services
- **Section 3:** Terms and Conditions
- **Section 4:** Payment Schedule



The following documents shall form an integral part of this Agreement:

- Sections 1 to 4 of this Agreement;
- Service Contract executed at the time of appointment of the Consultant (PMC).
- ANNEXURE A and ANNEXURE B

WHEREAS:

The mutual rights and obligations of the Client and the Consultant (PMC) shall be governed by the terms set forth in this Agreement, and specifically:

- The Consultant (PMC) shall perform the Services as specified herein, in accordance with the terms and conditions of this Agreement.
- The Client shall make payments to the Consultant (PMC) in accordance with the agreed Payment Schedule and other relevant provisions contained herein.

IN WITNESS WHEREOF, the Parties hereto have executed and affixed their respective seals to this Agreement on 12th November 2025.

For and On Behalf of JAI JAWAN CO-OP. HOUSING SOCIETY LTD.



Chairman, Mr. Anandaraj Periaswamy,

Anandaraj Periaswamy

Secretary, Mr. Bhushan Ravindra Deshpande



Treasurer, Mr. Manohar Narayan Kadam

In the presence of:

1. *Khem Singh* 2. *Ram Parmar*

For and On Behalf of M/s. PATEL ARCHITECTS AND ASSOCIATES

Arch. Sagar Laxman Patel

In the presence of:

1. *Sagar Laxman Patel*
2. *Dhiraj D. Surana*
Adv. DHIRAJ D. SURANA
B.Com, L.B., Reg No. 27428
Off. No. A-235, Vashi Plaza, Sector-17,
Plot No. 80-81, Vashi, Navi Mumbai-400703
12 NOV 2025





Annexure – A

Deliverables Checklist

(Mandatory Documents, Reports, and Submissions by PMC)



A. Pre-Tender / Feasibility Stage

Sr. No.	Deliverable	Description / Contents	Submission Format / Frequency
1	Feasibility Report	Detailed feasibility report including plot details, TDR potential, existing structure analysis, and redevelopment potential.	One-time submission (hard & soft copy)
2	Comparative Feasibility Options	2-3 redevelopment scenarios with variations in TDR use, amenities, and financial structure.	One-time report
3	Preliminary Architectural Layout	Tentative floor plans, layout sketches, and amenity area plan.	Drafts before tender issue
4	Tender Document	Comprehensive tender including technical and financial criteria, evaluation matrix, and scope of developer's work.	One-time before tender
5	Evaluation Report	Technical and financial analysis of all developer bids received.	Within 10 days of bid opening
6	Recommendation Report	Summary of shortlisted developer and justification for selection.	One-time report to Society
7	Fortnight Meeting Minutes (Pre-Tender)	Meeting record with attendance and key decisions.	Every meeting signed by members

B. Pre-Construction Stage

Sr. No.	Deliverable	Description / Contents	Submission Format / Frequency
8	Draft Letter of Intent (LOI)	Prepared in coordination with Society's legal advisor.	One-time
9	Developer Comparison Chart	Final analysis of offers and amenities.	One-time before selection
10	Development Agreement Review Report	Legal & technical review of the draft DA highlighting risks and protection clauses.	One-time prior to signing
11	Member Requirement Record	Unit-wise list of members, carpet area, choice of floor, parking, etc.	Final record before design freeze





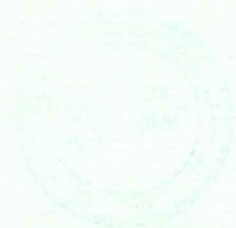
Sr. No.	Deliverable	Description / Contents	Submission Format / Frequency
12	Project Bar Chart / Timeline	Project schedule with milestones (CC, plinth, RCC, OC, etc.)	Initial and updated quarterly
13	Approvals Tracking Sheet	Checklist of all statutory approvals (IOD, CC, NOC, etc.).	Monthly update
14	Coordination Meeting Minutes	Summary of coordination meetings between Developer-PMC-Society.	Fortnightly

C. Construction Stage

Sr. No.	Deliverable	Description / Contents	Submission Format / Frequency
15	Weekly Progress Report	Construction status, work completed, delays, with photographs.	Weekly (PDF & print copy)
16	Photographic Evidence Log	Dated photos of all critical construction stages (foundation, plinth, RCC, finishing).	Weekly upload to shared folder
17	Site Supervision Log Book	Records of site visits by PMC, observations, and corrective actions.	Maintained daily; reviewed weekly
18	Monthly Quality Assurance Report	Results of material and workmanship tests (concrete cubes, steel, plumbing, electrical).	Monthly
19	Material Testing Reports	Laboratory reports for materials (cement, steel, sand, etc.)	As and when available
20	Deviation / Change Order Report	Any design or scope deviation approved by Society.	As needed
21	Safety and Labour Compliance Report	Verification of safety measures, PPE use, and labour insurance.	Monthly
22	Bar Chart Update	Revised timeline vs. actual progress chart.	Monthly
23	Fortnight Meeting Minutes	Signed meeting summary with action list.	Every two weeks

D. Post-Construction & Handover Stage

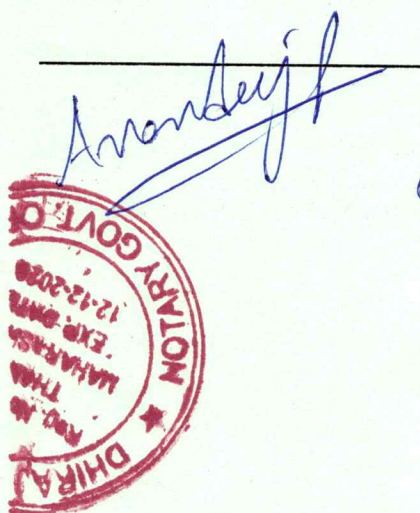
Sr. No.	Deliverable	Description / Contents	Submission Format / Frequency
24	Pre-Completion Inspection Report	Checklist verifying finishing, fittings, and amenities as per agreement.	Before OC application
25	Completion Stage Report	Summary of work completed and readiness for Occupancy Certificate.	One-time



Sr. No.	Deliverable	Description / Contents	Submission Format / Frequency
26	Final Quality Certification	Statement by PMC confirming compliance with specifications.	One-time
27	Snag List & Rectification Report	List of defects pending correction before final handover.	One-time before possession
28	Final Completion Report	Certification of entire project completion and compliance.	One-time
29	Digital Archive Submission	Soft copy of all reports, drawings, approvals, and photos on pen drive or cloud drive.	Upon completion
30	Handing Over Report	Signed record of key transfer between Developer, PMC, and Society.	One-time

E. Optional / Recommended Deliverables

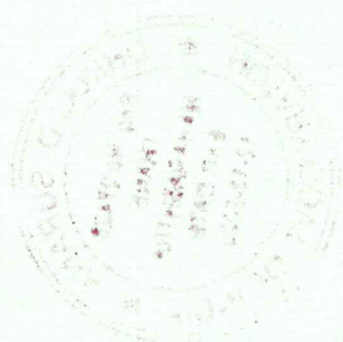
Sr. No.	Deliverable	Description / Contents	Submission Format / Frequency
31	Cost Audit Report	Verification of actual construction cost vs. approved estimate.	Mid-project and final stage
32	Environmental Compliance Record	Verification of waste management and pollution control compliance.	Quarterly
33	Insurance Verification Report	Confirmation of valid contractor and workmen insurance.	Annual
34	Digital Backup	Cloud-based backup of all site reports and communication.	Continuous



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Annexure B

Compliance Matrix

(Key Approval Documents to be Verified by PMC)

A. Pre-Redevelopment / Pre-Tender Stage

Sr. No.	Document / Approval	Responsibility	Remarks
1	Society Registration Certificate	Society	Verify authenticity and latest Managing committee details
2	Property Card / 7/12 Extract	Society / PMC	Verify ownership, area, and boundaries
3	CTS Plan / Survey Plan	Society / Developer	Confirm exact plot area
4	Existing Building Plans (As-built)	Society	Verify current layout and FSI utilization
5	Occupancy Certificate (OC) - Existing Building	Society	Confirm legal occupancy status
6	Commencement Certificate - Original Construction	Society	Verify previous approvals
7	Structural Audit Report	Licensed Structural Engineer	Mandatory for redevelopment approval
8	Feasibility Report	PMC	Must align with CIDCO/NMMC/TDR norms
9	Tender Document	PMC	Includes technical & financial bid formats
10	SGBM Resolution Approving Redevelopment	Society	Certified true copy signed by office bearers
11	Developer Evaluation Report	PMC	Comparative technical and financial analysis

B. Developer Finalization & Agreement Stage

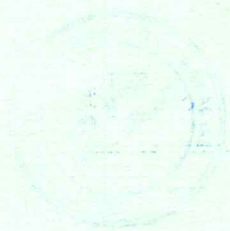
Sr. No.	Document / Approval	Responsibility	Remarks
12	Letter of Intent (LOI)	PMC / Society	Issued after SGBM approval
13	Draft Development Agreement (DA)	Legal Advisor / PMC	Vet all clauses for Society's interest
14	Power of Attorney (if applicable)	Society	Specify scope clearly
15	Architect Appointment Letter (Developer's Architect)	Developer	Verify credentials



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Sr. No.	Document / Approval	Responsibility	Remarks
16	Approved Layout Plan	Developer	As per CIDCO/NMMC norms
17	Consent Letters from 100% Members	Society	Essential before DA registration
18	Registered Development Agreement	Society Developer	Copy to be retained by PMC
19	RERA Registration Certificate	Developer	Must be verified and displayed

C. Plan Approval & Pre-Construction Stage

Sr. No.	Document / Approval	Responsibility	Remarks
20	IOD – Intimation of Disapproval	Developer	Verify all conditions mentioned
21	CC – Commencement Certificate	Developer	Verify stage-wise CC issuance
22	NOC from CIDCO	Developer	Applicable for leasehold plots
23	NOC from Fire Department	Developer	Mandatory for safety compliance
24	NOC from Storm Water / Sewerage Dept.	Developer	Verify drainage connections
25	NOC from Water Supply Dept.	Developer	Ensure adequate provision
26	NOC from Tree Authority	Developer	For any tree cutting/plantation
27	NOC from MSEB / Electrical Dept.	Developer	For temporary & permanent power
28	Lift Installation Approval	Developer	Required before installation
29	Soil Test Report	Developer / PMC	Verify bearing capacity & foundation design
30	Structural Design Approval (RCC Consultant)	Developer	Must comply with IS Codes
31	Site Safety & Labour Welfare Plan	Developer	PMC to monitor compliance

D. Construction Stage

Sr. No.	Document / Approval	Responsibility	Remarks
32	Approved Working Drawings	Developer's Architect	Checked and endorsed by PMC
33	RCC, MEP, Electrical & Plumbing Drawings	Consultants	Cross-check with execution
34	Quality Test Certificates (Concrete,	Developer	Maintain material test reports



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Sr. No.	Document / Approval	Responsibility	Remarks
	Steel, etc.)		
35	Weekly / Monthly Progress Reports	PMC	With photographic evidence
36	Site Supervision Log Book	PMC	Record of site visits & directions
37	Insurance Policies (Workmen, Contractor All-Risk)	Developer	Verify coverage & validity
38	Labour Compliance Register	Developer	PF, ESI, and safety compliance
39	Site Meeting Minutes	PMC	Fortnightly, signed by all parties
40	Material Approval Records	PMC	Maintain test certificates & approvals

E. Post-Construction & Handover Stage

Sr. No.	Document / Approval	Responsibility	Remarks
41	Completion Certificate	Developer	From CIDCO/NMMC
42	Occupancy Certificate (OC)	Developer	Verify final OC copy
43	As-Built Drawings (Architectural, Structural, MEP)	Developer's Architect	PMC to verify accuracy
44	Fire Safety NOC (Post Installation)	Developer	For functional systems
45	Water & Sewerage Connection Certificates	Developer	From local authority
46	Building Insurance Policy	Society	Mandatory post-handover
47	Society Re-registration / Conveyance	Society / Legal Advisor	For new construction records
48	Handing Over Report & Defect Liability Details	PMC / Developer	Record all pending issues
49	Warranty Certificates (Lift, Pumps, Electrical, etc.)	Developer	Minimum 1-year warranty
50	Final Completion Report by PMC	PMC	Certifying project compliance

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F. Additional Recommended Records

Sr. No.	Document / Record	Responsibility	Remarks
51	Digital repository of all site photographs	PMC	Stored securely online
52	Bar chart & milestone tracking logs	PMC	Updated weekly
53	Minutes of Committee meetings	PMC / Society	Signed by all attendees
54	List of statutory & consultant contacts	PMC	Updated quarterly
55	Correspondence Log (PMC-Developer-Society)	PMC	For transparency & audit trail

